

24STCV30344 24STCV30344

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Case Number: 24STCV30344 Hearing Date: August 4, 2026 Dept: 414

24STCV30344 Berry v.

Los Angeles Community College District

Tuesday,

August 4, 2026

[TENTATIVE] ORDER DENYING DEFENDANT'S MOTION TO COMPEL FURTHER
RESPONSES TO FORM INTERROGATORIES- GENERAL (0957)

[TENTATIVE] ORDER DENYING DEFENDANT'S MOTION TO COMPEL FURTHER
RESPONSES TO FORM INTERROGATORIES- EMPLOYMENT LAW (0814)

I. BACKGROUND

The

second amended complaint alleged Plaintiff is a sociology professor for Defendant and has been employed since 2013. Plaintiff alleges that the Vice President overseeing all educational programs engaged in acts including termination that Plaintiff claims were motivated by racial discrimination. The Vice President allegedly interfered with Plaintiff's medical leave. Plaintiff alleges seven causes of action for various violations of the Fair Employment and Housing Act, the California Family Rights Act, and a tort claim for wrongful termination in violation of public policy.

Defendant

propounded two sets of discovery, one for general form interrogatories, and a second set for employment law form interrogatories. Defendant argues that Plaintiff's responses to each set were not verified, the answers were evasive

or incomplete, and the objections were without merit and too general. Defendant requests imposition of sanctions.

In

opposition to both motions, Plaintiff argues that Defendant failed to request an IDC. The single meet and confer letter sent by email was not reasonable or in good faith. Plaintiff contends the motion is moot because Plaintiff served verified supplemental responses. There is nothing for the Court to compel. The requests for imposition of sanctions are unjustified.

Defendant

contends in reply that the motion is not moot because Plaintiff maintained boilerplate objections and some responses remain deficient.

II. LEGAL STANDARDS

A

motion to compel further responses to special interrogatories, is proper where the requesting party believes the responses are evasive and incomplete, that an objection is without merit, or an exercise of the option to produce documents is unwarranted. (Code Civ. Proc., sections 2030.300 subd. (a).) The motion must be accompanied by a meet and confer declaration. (Id. subd. (b).)

Sanctions may be imposed against the person, party, or attorney who unsuccessfully makes or opposes a motion unless the court finds that the sanctioned party acted with substantial justification, or imposition of sanctions would be unjust. (Id. subd. (d).)

III. DISCUSSION

While

an informal discovery conference with the court is not mandatory, the motion must be accompanied by a declaration describing the parties' meet and confer attempts.

Defendant

sent a meet and confer letter which Plaintiff ignored, and Defendant did not follow up. The meet and confer requirement is designed to encourage the parties to resolve their issues informally and "lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants." (Townsend v. Superior Court (1998) 61

Cal.App.4th 1431, 1435.

["[T]he parties must present to each other the merits of their respective positions with the same candor, specificity, and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere effort' to resolve the matter."].)

A

discussion never took place between the parties. Plaintiff does not show substantial justification for failing to respond to Defendant's meet and confer letter. Instead, Plaintiff filed supplemental responses after the motion was filed which Defendant believes remain deficient. This leaves the burden on the Court to rule on matters which no one discussed or attempted to resolve informally. Motion practice is not how meet and confer is accomplished.

IV. CONCLUSION

The

Court finds that Plaintiff served supplemental responses to the discovery at issue. To the extent Defendant believes the responses remain deficient, the parties are ordered to meet and confer and discuss each parties' positions before filing a motion as required by statute.

Because

both parties failed to uphold their obligations under the Discovery Code, the Court does not award sanctions to either party.

Defendant's

motions to compel further responses to Form Interrogatories -- General, and Form Interrogatories -- Employment, are DENIED.